

# Sri Shivaramu H vs Smt C E Nalini on 31 August, 2010

**Author: Ajit J Gunjal**

**Bench: Ajit J Gunjal**

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 31st DAY OF AUGUST 20 20~ Q'

BEFORE

THE HON'BLE MR. JUSTICE\_\_AJIT J.é:}UN.;I':\$tL""~

WRIT PETITION NOS. 10279/2010tz\$: A  
17225/2010 (GM-zafcg i

BETWEEN :

Sri Shivaramu H.

S/o. Sri. Huthaiah, \_s  
Aged about 46 years, .  
Residing at Hale Buvdanjgir, '  
Mandya Taluk,?\_ \_ \_ A ,  
Mandya V\_ ...PETI'I'IONER

(Byvsm\$ i.\*;st i3i2::"1zshVot-ha1"fia'Rai, Adv.)  
AND: A A A x

Smt. c.\_e. NaIini,' . A

s W/o sigéi H;.Shivararir1u, 1  
'Aged v-about 4'5.years'," ""  
=,Resici\_,ing at .1\Io}4:30,

8\*? Mail}, \_V,=jaya\_\*1é\$gaI,  
Ban./g'alore45f30 Q40. ...RESPONDENT

Sd1ji..R4fRaja, Adv. for  
' Sari R.B.Sadashivappa, Adv.)

'These writ petitions are filed under Articles 226

. of the Constitution of India with a prayer to call  
"for the records in M.C.No. 3683/2007 on the file of the  
Sm Additional Family Court, Bangaiore, peruse the same

and allow this W.P., etc. -

These writ petitions coming on for further hearing, this day, the Court made the following:

ORDER

The petitioner is the husband.

wife. The marriage between the petitioner and respondent was solemnized. After the marriage, both the petitioner and respondent lived together for some time and they lived in Budanur in Mandya district for a short while to eke out their livelihood. , that the petitioner is an Engineer could not get a proper employment with one M/S. Happy ceased on account of cessation of work. The petitioner was discharged from the job to say that three proceedings are pending between the wife and the husband. Wife has initiated proceedings under Section 9 of the Hindu Marriage Act seeking restitution of conjugal rights.

The husband has also filed a petition under Sections 7 and 25 of the Guardianship and Wards Act, 1890 seeking custody of the wife. The wife has maintained an application under Section 13 of the Hindu Marriage Act seeking divorce. The main ground on which sought is that her husband is an Engineer and he is working in a position to maintain himself. It is also stated that she would care of herself and her son who are of the Primary Schools. The husband has filed objections to the application for restitution of conjugal rights as well as the application for interim maintenance. The main objections of the husband is that notwithstanding the fact that he is a Mechanical Engineer, he is not in a position to pay any maintenance inasmuch as, he is unemployed as of now. It is also stated that he has been living under the mercy of his parents. As his 2% share, he has 25 guntas of land in the joint family property out of which he is earning meager income.

4. The learned Family Judge having the averments made in the application as well as the statement of objections was of the view that the husband is a qualified Engineer is earning substantial amount sum of Rs.7,500/- to the wife and to the minor son. Aggrieved is before this court.

5. Learned counsel appearing for the husband vehemently submits that the husband has absolutely no avocation as on today he is a destitute. He further submits that the wife is working in a call centre and is earning a sum of Rs.15,000/- per month. He further submits that since the interim maintenance was not paid, his defence has been struck out. The sum and substance is that of the fact that he is working and earning.

6. The learned counsel appearing for the respondent supports the impugned order. It is the contention of the wife that the husband is a qualified Engineer is earning Rs.30,000/- per month. He contends that in the petition filed under Act seeking custody of the child, he has stated that he is a Mechanical Engineer and his family has certain status which would necessarily mean that care of the wife

and child. 2 '

7. Appai'eitljf.'i pinsefar-l as the quantum is concerned 'having"regardV.to the cost of living as well as the raising pricetythei Essential Commodities, I am of 'v.ievJ\_Vthat.4:a\*~-sum of Rs."/1500/-- per month to the Wife /-- to the son cannot be said to be 'excessiVe";V.pVv.VhVich would warrant interference by this ".C.ourt..under Articles 226 and 227 of the Constitution of it Insofar as the ability of the husband to pay the Vinterim maintenance is concerned, it is not in dispute that the husband is a quali ed engineer. It is also n in dispute that atieast at one point of time, he was working as an Engineer. Indeed the petition ed under the Guardian and Wards Act is made perusai of the said petition would interesting reading. It is necess:§5'ii;Y::A"tov portion of the pleadings. 9 it 9. h it it it "It is further subn1itted""e4th'at, dtied to wiliful desertion and negtec-t."(S.ic.) or'1"the"h4 part of the respohdent,"- has suffered mental :V.the"Vrespohdent is not allowiigi thegipeti'ioner::to:--'si::wiA{Sic.} his child, eruelty and the

-of his sons love and ajfeeiiioit is having great arribitioii,-V to ti\_1ftef" son and to provide A \_\_tA'E:\*etterh Z "education, the family of the having good back ground, all of the family are highly are is(Sic.) good status, the puetitioner himself is a BB. Graduate settled V. " < veryh hnear to Mandya City. "

. '4"( .11SC10SeS that It is not open for the husband now to }\$%

8. A perusal of these pleadings itself clearly .f// contend that he is without any job and he is not in a position to maintain his Wife and chiid. Indeed\_..\_t\_he petitioner is an able bodied man and he is requiifed"LftTo maintain his wife as well as the minor son.

9. Having regard to the fact:

qualified person, I am of the viexy that the vde=t;en11inati.onVd of interim maintenance at the:'rate--.Vof and Rs.2,500/-- to the respectiveiy, cannot be said tobe exeessi e There is no merit in this p.etiti-.an.\_e\_ .. t Petitions st.a:1Vc}'::'ejetr:fet£,\_T""~----.\_ ~ M Sd/-9 Judge